

Conclusion

Plaintiff Cathay Bank's Application is **granted**. The amount to be secured is \$2,454,662.38, consisting of \$2,426,813.38 in principal and accrued interest, \$24,848.99 in estimated attorney fees, and \$3,000 in estimated costs. The Bank is required to post an undertaking of \$10,000 before the writ shall issue.

19. 9:00 AM CASE NUMBER: C26-00466
CASE NAME: ROBERT WOODS VS. BRIDGESTONE RETAIL OPERATIONS, LLC,
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: ARBY AIWAZIAN**
FILED BY: WOODS, ROBERT
TENTATIVE RULING:

Summary

Plaintiff's counsel, Lawyers for Justice PC, by and through Travis J. Maher, Mno M. Bogosyan, and Raffi Margossian ("Withdrawing Counsel"), filed a Motion to Be Relieved as Counsel for Plaintiff Robert Woods ("Plaintiff"). The Motion is **granted** as set forth herein. No appearance is required at the hearing on May 27, 2026.

Background

This is a Private Attorney General Act Case wherein Plaintiff brings an action against Defendant Bridgestone Retail Operations, LLC for alleged violations of various provisions of the Cal. Labor Code. On April 1, 2026, Withdrawing Counsel filed a Motion to be Relieved as Attorney for Plaintiff.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal. Specifically, Withdrawing Counsel attests that there is breakdown of the attorney client relationship, including a breach of the retainer agreement, which makes representation of Plaintiff impossible.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain replacement counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel as submitted on April 15, 2026. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the client to fill-out and file the change of address form with the Court.
4. The Court also orders Withdrawing Counsel to provide notice of the Case Management Conference calendared for June 18, 2026 at 8:30 a.m. in Department 16, along with a notification that Plaintiff or new counsel is required to appear.
5. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order and the Change of Address form (MC-040).

20. 9:00 AM CASE NUMBER: MSC20-00441

CASE NAME: MILZ VS. SILVERA

***HEARING ON MOTION IN RE: ENTRY OF JUDGMENT OF DISMISSAL**

FILED BY: MILZ, MARK

TENTATIVE RULING:

Before the Court is Plaintiffs Mark Milz and Milz Development & Construction's Motion for Entry of Judgment of Dismissal.

Plaintiff's Motion for Entry of Final Judgment is **granted** with modification as discussed below.

Procedural Background

Plaintiffs filed their Complaint on March 2, 2020. The parties proceeded to litigate the matter. On September 13, 2024, Defendants M. Marketta Silvera and L. Rondal Silvera filed a motion for summary judgment. That same date, Defendants Golden Gate Sotheby's International Realty and Lauren Holloway also filed a motion for summary judgment, or in the alternative, summary adjudication. Both motions were unopposed.

On October 30, 2024, the Court issued two separate minute orders after hearing argument on the motions granting summary judgment on the two motions. Thereafter, the Silvera Defendants submitted an order after hearing, which the Court signed on November 20, 2024, and filed on November 22, 2024, indicating that the Silvera Defendants' Motion for Summary Judgment was granted. It also attached and incorporated the Court's minute order from October 30, 2024. Defendants Golden Gate Sotheby's International Realty and Lauren Holloway never submitted any such order, despite California Rules of Court, Rule 3.1312's requirement to do so.

None of the Defendants sought entry of a final judgment based on the granting of summary judgment in their favor. Plaintiffs now move the Court to enter a final judgment so that they can properly take their appeal as to the granting of the summary judgments.

The Silvera Defendants filed a 'limited opposition' indicating that they "have no objection to entry of judgment in their favor provided that the Court retain jurisdiction to award attorneys' fees." The Court notes that the Silvera Defendants filed a motion for attorney fees on February 20, 2026, which